

1.

CASE #	CASE NAME	HEARING NAME
CVSW2308928	KARAS VS KPC GLOBAL MEDICAL CENTERS, INC.	MOTION FOR SECURITY BOND AND ORDER REQUIRING THIS COURT'S PERMISSION FOR PLAINTIFF TO MAINTAIN THIS INSTANT ACTION BASED ON HIS STATUS AS A VEXATIOUS LITIGANT
CASE #	CASE NAME	HEARING NAME
CVSW2308928	KARAS VS KPC GLOBAL MEDICAL CENTERS, INC.	MOTION FOR SECURITY BOND AND ORDER REQUIRING THIS COURT'S PERMISSION FOR PLAINTIFF TO MAINTAIN THIS INSTANT ACTION BASED ON HIS STATUS AS A VEXATIOUS LITIGANT

Tentative Ruling: The Corporate Defendants' Motion for an Order Requiring Security in granted in the amount of \$200,000.00. If Plaintiff fails to furnish the required security within 30 days of this order, Plaintiff's SAC shall be dismissed as to Corporate Defendants only.

Corporate Defendants' Motion for an Order Requiring this Court's Permission for Plaintiff to Maintain the Instant Action is denied.

REQUEST FOR JUDICIAL NOTICE

Corporate Defendants' request is denied for judicial notice of the May 15, 2026 Notice of Ruling filed in San Diego Superior Court Case No. 24CL024029C, which deemed Plaintiff to be a vexatious litigant. Corporate Defendants acknowledge that this Court has already deemed Plaintiff a vexatious litigant in this action as of May 20, 2026. (Behrendt Decl., Exh. 3.) Accordingly, the San Diego Superior Court's notice of ruling is not relevant to the instant motion for an order requiring Plaintiff to post security.

EVIDENTIARY OBJECTIONS

Plaintiff's Objections to Hospital Defendants' Motion

Similar to his objections to Physician Defendants' prior motion, Plaintiff objects that the Coleman and Leary declarations lack evidentiary foundation because the medical records upon which they relied are not attached to the motion and were allegedly obtained in violation of HIPAA and CMIA. Neither objection is availing. As to foundation, the declarations were submitted under penalty of perjury by retained experts based on records produced in discovery, thus they constitute competent evidence for purposes of this motion. As to Plaintiff's allegations of HIPAA and CMIA violations, these are

collateral discovery disputes that do not bear on the admissibility of expert declarations at a vexatious litigant hearing under C.C.P. § 391.2, which expressly authorizes the Court to consider evidence by affidavit. Thus, the Court overrules Plaintiff's evidentiary objections in full.

Plaintiff's Objections to KPC Defendants' Motion

Plaintiff objects to certain statements in the declarations of Amanda K. Behrendt and Kelly Thomas, arguing that they are irrelevant, prejudicial, and lack of foundation. However, Behrendt's statements regarding the procedural history of this action, Plaintiff's litigation history, and the amount of attorney fees and costs incurred are all relevant to this motion for a security based on Plaintiff's vexatious litigant status. Further, Thomas' position as KPC Healthcare, Inc.'s Executive Vice President of Legal Affairs lays sufficient foundation for her statements that KPC Defendants had no ownership interest and did not operate, own, or control HGMC during the dates of the incidents. Thus, the Court overrules Plaintiff's evidentiary objections in full.

Timeliness

"All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days...before the hearing." (C.C.P. § 1005(b).) Here, the hearing on KPC Defendants' motion was initially set for June 30, 2026. Accordingly, Plaintiff's opposition was due by June 16, 2026 (nine court days before June 30, 2026, excluding weekends and the Juneteenth Court holiday on June 19, 2026). However, Plaintiff did not file his opposition until almost one week later, on June 22, 2026. Accordingly, Plaintiff's opposition is untimely. However, the Court is inclined to consider the untimely opposition.

SECURITY

"The vexatious litigant statutes, section 391 *et seq.*, provide two remedies against vexatious litigants. The first is an order to furnish security, as described in section 391.3. This remedy is obtained by bringing a motion under section 391.1, which requires a determination that the plaintiff is a vexatious litigant, and that 'there is not a reasonable probability that he will prevail [on the merits].' If an order to furnish security is issued, the action is automatically stayed from the time the motion was filed until 10 days after the plaintiff posts the required security. [CCP § 391.6.] If the security is not posted, the action 'shall be dismissed as to the defendant for whose benefit it was ordered furnished. [CCP § 391.4.]" (*Holcomb v. U.S. Bank Nat. Assn.* (2005) 129 Cal.App.4th 1494, 1499 [internal quotations omitted].)

Here, the Court has already deemed Plaintiff a vexatious litigant in this action. Accordingly, the only issue is whether Corporate Defendants have established that there is not a reasonable probability that Plaintiff will prevail on the merits of his claims against them.

Probability of Prevailing

“[O]n a motion for an order requiring a vexatious litigant to post security, the moving party must make a showing that there is no reasonable likelihood of the plaintiff prevailing in the action against that defendant. This showing is ordinarily made by the weight of the evidence but a lack of merit may also be shown by demonstrating that the plaintiff cannot prevail in the action as a matter of law.” (*Golin v. Allenby* (2010) 190 Cal.App.4th 616, 640-642.)

Here, Plaintiff has asserted the following causes of action against Corporate Defendants: (1) Professional Negligence; (2) Lack of Informed Consent; (3) Fraud; (4) Willful Misconduct; (5) Negligent Hiring/Failure to Screen/Supervise Hospital Medical Staff and Physicians; and (6) Patient Abandonment. Plaintiff’s claims arise from his admissions to HGMC and focus primarily on the alleged administration of anticoagulants during his hospitalizations.

Hospital Defendants’ Motion

Hospital Defendants contend there is no reasonable probability that Plaintiff will prevail on the merits of his claims because they are time-barred and fail to state causes of action against Hospital Defendants.

Statute of Limitations

Hospital Defendants argue that Plaintiff’s causes of action for professional negligence, negligent hiring, and patient abandonment are time-barred under C.C.P. § 340.5, which states that an action for injury against a health care provider based on professional negligence shall be commenced within the earlier of 3 years after the date of injury, or 1 year after the plaintiff discovered, or through the use of reasonable diligence should have discovered, the injury. The statute of limitations is only tolled upon proof of fraud or intentional concealment. (*Id.*) Under C.C.P. § 364, no action based on a health care provider’s professional negligence may be commenced unless the defendant has been given at least 90 days’ prior notice of the intention to commence the action, which extends the time for commencement of the action to 90 days from the service of the notice. (C.C.P. § 364(a) and (d).)

Hospital Defendants argue that Plaintiff was aware that he was being administered anticoagulants during his admission from July 14 through 16, 2022, as evidenced by his specific refusal to take these medications on these dates. Accordingly, Hospital Defendants contend that Plaintiff should have filed the instant action by July 16, 2023, but did not do so until October 24, 2023. Hospital Defendants assert that Plaintiff never served them with a notice of intent under C.C.P. § 364, and as such, his time to commence the action against them was not extended by 90 days.

Plaintiff contends that the action was timely commenced because he served Hospital Defendants a C.C.P. § 364 Notice of Intent to Sue, and intends to provide the Court with the original proofs of service at the hearing. However, service of the notice of intent only extends the time for commencing the action for 90 days from the date of service.

(C.C.P. § 364(d).) Accordingly, even if Plaintiff had served a notice of intent upon Hospital Defendants on July 16, 2023, which is the last day of the one-year statute of limitations under C.C.P. § 340.5, the deadline would have only been extended to October 16, 2023. Plaintiff did not file the instant action until October 24, 2023, more than 90 days after the expiration of the one-year statute of limitations.

Plaintiff argues that the statute of limitations did not begin to accrue until Plaintiff became aware of the severity of his injuries, which he alleges occurred when he was diagnosed with Meniere's Disease in February 2023. (Opp., p. 6.) However, the SAC contains no allegations of Plaintiff's Meniere's Disease. Rather, the SAC alleges that "within minutes of being administered Lovenox followed by Warfarin or Jantoven, Plaintiff began experiencing symptoms consistent with having suffering a stroke." (SAC, ¶ 17.) Accordingly, Plaintiff's own allegations establish that he became aware of his injury "within minutes" of Hospital Defendants' allegedly negligent actions. Thus, Hospital Defendants have established that Plaintiff has no reasonable possibility of prevailing on his 1st, 5th, and 6th causes of action for professional negligence, negligent hiring, and patient abandonment against them, as they are time-barred by C.C.P. § 340.5's one-year statute of limitations.

MERITS

As to the merits of the causes of action, Hospital Defendants attach the declarations of hospital administrations expert witness, Dennis Coleman, and nursing expert witness, Davina Leary, R.N., C.C.M., which were previously submitted in support of Defendants' motion for summary judgment.

Coleman attests that Hospital Defendants met the standard of care applicable to an acute care facility by deferring duties that can only be carried out by a licensed physician, including medication orders, obtaining informed consent, diagnosis and treatment, and determining the necessity of specialist consultations, discharge, or transfer, to Physician Defendants. (Coleman Decl., ¶ 10-11.) Coleman further opines that Hospital Defendants complied with statutory regulations regarding Emergency Department on-call specialists and screening physician staff privileges as to Physician Defendants. (Coleman Decl., ¶ 13-25.)

Leary opines to a reasonable degree of medical probability that the care and treatment rendered to Plaintiff by Hospital Defendants' nursing and ancillary medical staff met or exceeded the applicable standard of care during each of his hospitalizations with Hospital Defendants in June and July 2022. (Leary Decl. ¶ 6-12.)

Although Plaintiff cites *Elam v. College Park Hospital* (1982) 132 Cal.App.3d 332 to support his argument that the Doctrine of Corporate Hospital Liability imposes hospitals with a duty of care toward patients regarding the hiring, selection, training, and supervision of independent contractor physicians, Coleman opined that based on his review of the bylaws and declaration of Dorothy Sergeant regarding Hospital Defendants' Credentialing Committee, Hospital Defendants properly and appropriately screened the competency of the Physician Defendants. (Coleman Decl., ¶ 15-25.)

Plaintiff has submitted no competing expert declaration contradicting either Coleman or Leary's opinion on Hospital Defendants' compliance with the standard of care as to their hiring, selection, training, and supervision of the Physician Defendants, or the medical treatment that Hospital Defendants' employees rendered to Plaintiff during his hospital admissions. Further, Plaintiff submits no evidence to support his allegation of nursing staff shortages, or that such shortage caused his injuries. (SAC, ¶ 26.) To the extent that Plaintiff attempts to impose liability upon Hospital Defendants for actions or omissions by Physician Defendants, including lack of informed consent or fraudulent misrepresentations, it should be noted that by granting Physician Defendants' motion for a security, the Court necessarily found that Plaintiff could not reasonably prevail upon his underlying claims against Physician Defendants.

KPC Defendants' Motion

KPC Defendants argue that Plaintiff will not prevail on his claims against them because KPC Defendants did not hold any ownership interest in, and did not operate, own, or control, HGMC during the hospitalizations at issue. In support of their motion, KPC Defendants attach the declaration of Kelly Thomas, KPC Healthcare Inc.'s Executive Vice President of Legal Affairs, which was previously submitted in support of Defendants' motion for summary judgment. (Behrendt Decl., Exh. 4.) Thomas attests that during June and July 2022, none of the KPC Defendants had any ownership interest in, and did not operate, own, or control, HGMC. (Thomas Decl., ¶ 4-8.)

Accordingly, KPC Defendants argue that because they did not own, operate, or control HGMC, are not physicians, and did not employ Physician Defendants, KPC Defendants did not owe Plaintiff a duty of care to support his claims of negligence or negligent hiring, are not responsible for Plaintiff's causes of action for informed consent or patient abandonment, and cannot be held liable for Physician Defendants' alleged fraud or willful misconduct.

Plaintiff argues that KPC Defendants fail to rebut Plaintiff's allegations that they are "principals, partners, joint venturers, subsidiaries, agents, [or] representatives" of each other, or that they did not manage Hospital Defendants. (Opp., p. 7.) In support of his argument, Plaintiff contends that the medical records submitted in support of Hospital Defendants' motion for summary judgment was authenticated by an affidavit bearing the letterhead of KPC HC. (*Id.*) However, the letterhead states that it belongs to KPC Health Global Medical Centers, which is a Hospital Defendant, and contains an address for "KPC Healthcare Corporate," which is not named as a party to this action. (Hospital Defendants' Notice of Lodgment ISO Motion for Summary Judgment, Exh. 3, p. 1.) Accordingly, Plaintiff fails to produce any contrary evidence to rebut KPC Defendants' evidentiary showing.

SECURITY

As to the amount of security, Corporate Defendants each request that the Court order Plaintiff to furnish security in the amount of \$250,000.00. Hospital Defendants' counsel declares that to date, Hospital Defendants have actually incurred \$117,103.50 in attorney fees and \$20,799.92 in costs for defending this motion. (Behrendt Decl. ISO

Hospital Defendants' Motion, ¶ 10.) However, Hospital Defendants and KPC Defendants share the same counsel, and KPC Defendants state that they incurred the same amount of fees and costs in their motion. (Behrendt Decl. ISO KPC Defendants' Motion, ¶ 10.) Accordingly, it appears that Hospital Defendants and KPC Defendants jointly incurred the stated amount of attorney fees and costs. Counsel further expects to expend up to an additional \$125,000.00 in attorney fees, expert fees, trial preparation, court reporter fees, deposition fees, jury fees, and costs. (Behrendt Decl. ISO Hospital Defendants' Motion, ¶ 10.) Counsel's declaration is submitted under penalty of perjury and based upon the firm's accounting department records. (*Id.*)

The Court has discretion to set the security amount it deems appropriate. Under C.C.P. § 391(c), security means "an undertaking to assure payment, to the party for whose benefit the undertaking is required to be furnished, of the party's reasonable expenses, including attorney's fees and not limited to taxable costs, incurred in or in connection with a litigation instituted, caused to be instituted, or maintained or caused to be maintained by a vexatious litigant." As the Court of Appeal held in *Singh v. Lipworth* (2005) 132 Cal.App.4th 40, 45, this language is construed expansively and is not limited to fees that would be recoverable if the defendant prevails.

The \$250,000.00 figure represents an estimate of future costs rather than documented fees already incurred. The Behrendt Declaration, which covers fees and costs incurred specifically in the defense of Corporate Defendants, establishes they have actually incurred a total of \$137,903.42 in fees and costs through May 2026. A figure of \$200,000.00 reflects the documented fees already incurred, in addition to a reasonable allowance for the excluded categories of future expenses.

If Plaintiff fails to furnish the required security within 30 days, the action shall be dismissed as to Corporate Defendants only.

ORDER REQUESTING PERMISSION TO MAINTAIN ACTION

Corporate Defendants also request an order requiring Plaintiff to seek permission to maintain this action against them. However, defendants cite to no legal authority to support such an order. Further, under C.C.P. § 391.6, this action is automatically stayed against moving defendants until 10 days after Plaintiff furnishes the required security and gives moving defendants written notice thereof.